

24STCV06168 24STCV06168

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 24STCV06168 Hearing Date: June 24, 2026 Dept: 617

Dept.

617

Date:

6-24-26

Case

#: 24STCV06168

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendant, Jason Kilpatrick

RESPONDING

PARTY: Plaintiff, Kelly Nicole Deckers

RELIEF

REQUESTED

Demurrer

to Fourth and Seventh Causes of Action

SUMMARY

OF ACTION

Plaintiff

Kelly Nicole Deckers sued her former employer, Defendant City of Redondo Beach,

asserting numerous violations of the Fair Employment and Housing Act. After two

demurrers were sustained, Plaintiff filed a Third Amended Complaint on November

21, 2025. Plaintiff alleges that the City discriminated against her and that

its employees harassed her because of her need to attend oncology appointments

due to her prior cancer diagnosis. Plaintiff also brings a defamation claim

against the City, Redondo Beach Police Department Communications Supervisor

Jason Kilpatrick, and City Director of Human Resources Diane Strickfaden. On April

6, 2026, the Court overruled the City's demurrer to the fourth and seventh

causes of action in Plaintiff's Third Amended Complaint for harassment and

defamation.

RULING: Overruled.

Defendant

Kilpatrick demurs to the harassment and defamation claims in Plaintiff's Third

Amended Complaint. He argues that Plaintiff fails to allege facts sufficient to state her claims. Plaintiff opposes the demurrer, contending that the harassment claim is not asserted against Kilpatrick and that she has adequately pled her defamation claim. Kilpatrick's demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states

a cause of action under any theory, regardless of the title under which the

factual basis for relief is stated, that aspect of the complaint is good

against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998)

19 Cal.4th 26, 38.)

Fourth

Cause of Action: Harassment

Kilpatrick’s

demurrer to the harassment cause of action is overruled because he does not

have standing to demur to this claim. The harassment claim is only asserted

against the City and Kilpatrick cannot demur on its behalf. (See Carter v.

Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 410

[“Allegations of misconduct directed against one defendant, however, do not

state a cause of action against another defendant against whom the allegations

of misconduct are not directed”].) Allegations of Kilpatrick’s harassing

conduct are only alleged for the purposes of establishing the City’s liability.

[TAC ¶ 55.] Kilpatrick’s demurrer to this claim is thus overruled.

Seventh

Cause of Action: Defamation

Kilpatrick

argues that Plaintiff fails to state a defamation claim because she does not

allege who made the purportedly defamatory statements, the contents of the statements, and the manner and context in which they were made. He contends that Plaintiff also fails to adequately allege that the statements were made with malice and thus outside the scope of an applicable privilege. Kilpatrick further claims that assertion of the defamation claim against him violates the Court's prior January 27, 2025 ruling prohibiting Plaintiff from adding new causes of action in her amended complaint.

Kilpatrick's

arguments as to the insufficiency of the defamation claim are unavailing for the same reasons discussed in the Court's April 6, 2026 order overruling the City's demurrer. Plaintiff adequately alleges the content and context of the purportedly defamatory statements because she states that Kilpatrick told her prospective employers that "(1) Plaintiff was in litigation against City, (2) Plaintiff was not eligible for rehire by City, and (3) Plaintiff had been disciplined while employed by City." [TAC ¶¶ 80-83.] Plaintiff's allegations are also sufficient whether she is pleading libel or slander. Slander "can be charged by alleging the substance of the defamatory statement" (Okun v. Superior Court (1981) 29 Cal.3d 442, 458) and less particularity is needed for alleging libel where, as here, "it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues

sufficient to enable preparation of a defense.” (Id. at p. 458.) Again, even if Kilpatrick made the statements via written references, there is no indication that Plaintiff had access to the references to spell out the words verbatim in her complaint. And Plaintiff sufficiently alleges malice because she claims that Kilpatrick knew the statements were false and published them “with the intention of blackballing Plaintiff from employment with any police department.” [TAC ¶ 82.] These allegations therefore defeat Kilpatrick’s arguments regarding the inadequacies of Plaintiff’s claim.

Plaintiff

has also not violated the Court’s prior order by asserting the defamation claim against Kilpatrick. That order only restricted Plaintiff from adding new causes of action. Kilpatrick was a named defendant in the First Amended Complaint, and the Third Amended Complaint merely adds specificity to the purportedly defamatory statements. Kilpatrick’s demurrer to the defamation cause of action is thus overruled.

Kilpatrick

to answer the Third Amended Complaint within 10 days of this order.

The

Court declines Plaintiff’s invitation to rule on Strickfaden’s pending demurrer here.

Kilpatrick

to give notice.